
Case	Title / Nature of Case
02:00 PM	
22-CLJ-00684	DISCOVER BANK VS. ROXANNE A. EDUARTE
LINE 1	
DISCOVER BANK	AFSANEH AFZALNIA
ROXANNE A. EDUARTE	

PLAINTIFF'S MOTION FOR JUDGMENT

TENTATIVE RULING:

Plaintiff Discover Bank's unopposed motion to enter judgment against Defendant Roxanne A. Eduarte pursuant to parties' signed settlement agreement pursuant to Code of Civil Procedure section 664.6 is GRANTED IN PART.

To the extent that the Court needs to take judicial notice of its own file in the instant case, Plaintiff's request for judicial notice is GRANTED on the Court's own motion. Evid. Code § 452, subd. (d). However, the Court notes that Plaintiff did not comply with California Rules of Court, Rule 3.1113(l).

Initially, the Court observes that Plaintiff's notice of hearing provides the improper address for the hearing because the matter was reassigned to the Honorable David A. Silberman, Department 11, on May 11, 2026. Department 11 is not located in Redwood City as the notice states, but instead at the Central Branch Courthouse, Courtroom G, at 800 North Humboldt Street, San Mateo, CA 94401. See Cal. Rules of Court, rule 3.1110 (the Notice "must specify" the location of the hearing). While it remained Plaintiff's obligation to correct the notice, it is both understandable and harmless and the error is waived.

Under Code of Civil Procedure, section 664.6, the court retains jurisdiction in a case pending full performance of the terms of a written settlement agreement and such agreement may then be enforced upon motion of the aggrieved party. *Id.*

Here, the parties entered into a stipulated settlement agreement, a copy of which is attached to the Declaration of Plaintiff's Counsel Spencer Penuela as Exhibit 1. The Court's review of the agreement demonstrates that Defendant signed the agreement on April 6, 2022 and Plaintiff's agent employee signed the agreement on April 27, 2022. Penuela Decl. Ex. 1 p. 5. The agreement provides that the principal balance on the account is \$1,838.59 and any default will result in the principal amount due, less payments made plus court costs associated with filing and serving the action to obtain judgment. *Id.* at ¶¶ 1 & 5. In the event of default, the parties agreed that the Court was authorized to enter judgment in favor of the plaintiff and against the defendant and that Plaintiff need not make any court appearance to obtain said judgment unless otherwise required by the court. *Id.* ¶ 5. Plaintiff declares Defendant is in default because Defendant only made payments of \$850, not the full amount due. Penuela Decl. ¶ 5.

The motion is unopposed therefore the Court finds defendant's default is uncontroverted. However, the Court finds that Plaintiff does not establish entitlement to the full judgment amount requested because the principal balance owed appears to be misstated in the moving papers and counsel's declaration. The principal amount owed and agreed to in the parties' stipulated agreement as well as the amount stated in the complaint and requested in the prayer for relief is \$1,839.59, not \$2,089.59 (the amount indicated by

this motion). See Complaint ¶¶ 5, 10, 14 and Prayer ¶ 1; Penuela Decl. Ex. 1. Thus, Plaintiff is entitled to a judgment of \$1,364.71 as follows: \$1,839.59, the agreed account balance from the settlement, plus court costs requested in the amount of \$375.12 less \$850 in payments made. Accordingly, Plaintiff's motion to enter judgment pursuant to stipulation is GRANTED.

Judgment in the amount of \$1,364.71 shall be entered against defendant, payable to plaintiff upon entry of this order.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-01407 ROSARIO CUSTODIO, ET AL. VS. BRIUS, LLC, ET AL.
LINE 2

ROSARIO CUSTODIO
BRIUS, LLC

JAY P. RENNEISEN
LINDSEY ROMANO

PLAINTIFFS' MOTION FOR APPOINTMENT OF DISCOVERY REFEREE

TENTATIVE RULING:

Department 11 is recused in this matter.
